

SAMPLE SERVICE AGREEMENT

Parties

This Service Agreement ("Agreement") is entered into on July 22, 2026, between ABC Technologies Pvt. Ltd., Pune, Maharashtra (Client) and XYZ Solutions LLP, Mumbai, Maharashtra (Service Provider).

1. Scope of Services

The Service Provider agrees to provide software development, maintenance, and technical consulting services as described in Schedule A.

2. Term

This Agreement commences on August 1, 2026, and continues for 12 months unless terminated earlier in accordance with this Agreement.

3. Payment

Total Contract Value: ₹12,00,000. Payment shall be made monthly. Invoices are payable within 30 days. Late payments incur interest of 1.5% per month.

4. Confidentiality

Both parties shall keep confidential all proprietary, technical, financial, and business information disclosed during the Agreement. Disclosure is permitted only with written consent or where required by law.

5. Intellectual Property

All deliverables created specifically for the Client become the Client's property upon full payment. The Service Provider retains ownership of pre-existing intellectual property.

6. Warranties

Services shall be performed with reasonable skill and care. Deliverables shall substantially conform to agreed specifications for 90 days after delivery.

7. Limitation of Liability

Neither party shall be liable for indirect, incidental, consequential, or punitive damages. Total liability shall not exceed the total fees paid under this Agreement.

8. Indemnification

The Service Provider shall indemnify the Client against claims arising from intellectual property infringement, gross negligence, or willful misconduct.

9. Termination

Either party may terminate with 30 days' written notice. Immediate termination is permitted for a material breach not cured within 15 days.

10. Force Majeure

Neither party is liable for delays caused by events beyond reasonable control, including natural disasters, war, government action, strikes, or pandemics.

11. Dispute Resolution

Disputes shall first be negotiated in good faith. Unresolved disputes shall be settled by arbitration in Pune, Maharashtra under the Arbitration and Conciliation Act, 1996.

12. Governing Law

This Agreement is governed by the laws of India.

13. Entire Agreement

This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements.

Signatures

ABC Technologies Pvt. Ltd.

Authorized Signatory: _____

XYZ Solutions LLP

Authorized Signatory: _____